

	2022-01256174	The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$325,000 class action and PAGA settlement. Subject to defendant's submission of the declaration described below, the court grants the motion as follows: \$5,000 for enhancement award to plaintiff (not to exceed); \$97,500 for attorneys' fees (not to exceed); \$20,000 for attorneys' costs (not to exceed); \$6,950 for settlement administration fees (not to exceed); and \$20,000 total PAGA penalties (\$15,000 to LWDA). In the April 30, 2026 order (ROA 181), the court asked (i) whether the plaintiffs in the two cases identified in the Mojarro Declaration (ROA 168) are putative class members and/or aggrieved employees in this case, and (ii) how the settlement in this case will affect the plaintiffs' claims in the two cases identified in the Mojarro Declaration. ROA 181 (No. 5). These issues have not been addressed. Defendant's counsel is ordered to file and serve <u>by September 24, 2026</u> a declaration answering these questions. The final approval hearing is scheduled for <u>February 25, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
3	Clarke v. Purpose Driven Transport Inc. 2024-01421145	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$163,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Pursuant to the court's April 16, 2026 order (ROA 74), plaintiff has provided the estimated average, high and low class payments, and the estimated average, high and low PAGA payments. Lawrence Decl. (ROA 89) ¶¶ 24-25. The parties state that since the time of the last hearing they renegotiated the class period and PAGA period. Supp. Brief (ROA 81) at 3:16-23; Lloyd Decl. (ROA 83) ¶ 5. What class period and PAGA period did Lawrence use to calculate the estimated average high and low individual class and PAGA payments? 2. The Lawrence Declaration (ROA 89) states in paragraph 23 that the Net Settlement Amount is \$66,200 and in paragraph 24 that the Net Settlement Amount is